

PA.3 Inspection Sequence

The five inspections Pennsylvania requires by statute, the certificate that ends the job, what to do when you disagree — and the appeal you do not have if your municipality opted out.

Before you use this document

This is a process reference, not legal advice. Pennsylvania is not a no-code state and it is not a no-inspection state: the Uniform Construction Code applies to every house in the Commonwealth, and five inspections are required on every one of them. What changes from one municipality to the next is *who performs them* — a municipal code official, an agency the municipality retained, or, where the municipality elected not to administer the code at all, an agency **you** hire yourself. Fees, review queues and the local permits stacked on top of the building permit vary too. Confirm every item with the office that will actually handle your parcel before you rely on it.

FIVE INSPECTIONS, NAMED IN THE STATUTE

Pennsylvania does not leave the inspection list to local practice. The Act names it, and names it in the section governing municipalities that *did not* adopt an enforcement ordinance — which is the clearest possible signal that the list is a floor everywhere. The regulation repeats it for enforcing municipalities at 34 Pa. Code § 403.64(d) and (f).

35 P.S. § 7210.501(e)(1)

“For one-family and two-family dwelling units and utility and miscellaneous use structures, all of the following five inspections shall be required: (i) Foundation inspection. (ii) Plumbing, mechanical and electrical inspection. (iii) Frame and masonry inspection. (iv) Wallboard inspection. (v) Final inspection. **The final inspection shall not be deemed approved until all previous inspections have been successfully completed and passed.**”

Read the last sentence twice. It is the sequencing rule for the whole job: a final inspection is not a way to catch up on a missed wallboard inspection. If a stage was never inspected, the final cannot be approved, and without an approved final there is no certificate of occupancy.

The required five — and what each one is really checking

Inspection	What it covers	Cite
1. Foundation	Before the foundation is covered. In practice this is where footing depth, reinforcement, drainage and the under-slab vapor retarder get looked at — remember Pennsylvania reduced that retarder to 6 mil (PA.2).	§ 403.64(d)(1)

The required five — and what each one is really checking

Inspection	What it covers	Cite
2. Plumbing, mechanical and electrical	The rough-in inspection, written as a single item covering all three systems. Check the four amended electrical sections in PA.2 before you call for it. In Allegheny County the plumbing half of this is not a UCC inspection at all — it is the county's, on its own code.	§ 403.64(d)(2)
3. Frame and masonry	The framing inspection. This is where the 2006 IRC wall bracing provisions bite, and where the floor-membrane requirement of 35 P.S. § 7210.304(h) is checked if your floor system needs it.	§ 403.64(d)(3)
4. Wallboard	A distinctly Pennsylvanian inspection, and one owner-builders forget because most states have no such item. It happens after the board is hung and before finish — schedule it, or your final cannot pass.	§ 403.64(d)(4)
5. Final	The official conducts a final inspection of the completed work and files a final inspection report indicating compliance. That report is what the certificate of occupancy is issued against.	§ 403.64(f)

Five is the floor, not the ceiling

Section 403.64(e) lets the official “conduct other inspections to ascertain compliance with the Uniform Construction Code or municipal ordinances,” and many municipalities do — separate footing, insulation, underground plumbing and gas-pressure inspections are all common. So a local list of ten or twelve items is normal and lawful. What is **not** right is a guide that presents such a list as the statewide requirement.

Ask your official or agency, in writing, for the list it will actually run — and write it on the log at the back of this document. In an opt-out municipality you are buying that list under contract, so its length is a price term.

THERE IS NO CLOCK ON THE INSPECTOR

Pennsylvania puts a statutory deadline on nearly everything else in this process — fifteen business days to rule on your permit, five to issue a certificate of occupancy, thirty days to convene an appeal hearing. **There is no deadline anywhere for an inspector to show up.** Section 403.64(b) obliges you to notify the official when work is ready and to provide access; it sets no notice period, and no provision of the Act or Chapter 403 obliges the official to respond within any time at all.

This is the one place opting out is a genuine advantage

If your municipality runs the program, the schedule is whatever the office manages and you have no statutory lever. If your municipality opted out, you are **hiring the agency under a contract you negotiate** — so put response times in it. Ask for a stated turnaround on inspection requests and on plan review, what happens on a failed re-inspection, and what a re-inspection costs. Nothing in the UCC gives you those terms; a contract can.

Fees are worth negotiating for the same reason. Under 34 Pa. Code § 401.2a a municipality or third-party agency “may establish fees” with **no state maximum** — but subsection (b) requires the fee schedule to be made available to the public. Ask for it from more than one agency.

THE CERTIFICATE OF OCCUPANCY

“A residential building may not be used or occupied without a certificate of occupancy issued by a building code official” (§ 403.65(a)). The official must issue it **within 5 business days** of receiving a final inspection report showing compliance — **10 business days in cities of the first class**, which means Philadelphia.

Check the certificate before you file it away. The regulation requires it to state the permit number and address, the owner's name and address, the portion of the building it covers, a statement that the building was inspected for UCC compliance, the issuing official's name, **the construction code edition applicable**, whether an automatic sprinkler system is provided, and any special stipulations. The code edition line is worth having in writing — it is the record of which rules your house was actually judged against.

- **A temporary certificate is available** for a portion of the building that can be occupied safely, for a period the official sets (§ 403.65(f)). A partial certificate for an independently compliant portion is also possible (§ 403.65(c)).
- **In an opt-out municipality the paperwork still reaches the township.** The third-party agency must submit a copy of the certificate of occupancy to the municipality (§ 403.65(e)), and must send the final inspection report to the property owner, the builder and a lender designated by the builder (§§ 403.64(g), 403.103(f)). If you are your own builder, designate your own lender — that report is often what a construction loan converts on.
- **Keep the final report and the certificate permanently.** A third-party agency is required to retain copies of final inspection reports (§ 403.103(e)), but it is a private company. Your file is the one that will still exist when you sell.

IF YOU DISAGREE — AND THE GAP IF YOU OPTED OUT

In a municipality that administers the code, the appeal route is good and it is fast. The municipality must establish or designate a board of appeals, and members of the governing body may not sit on it. For a one- or two-family dwelling the board **“shall convene a hearing within 30 days of the appeal”** and render a written decision within five business days of the last hearing — ten in cities of the first class. And then the sentence that matters: **“If the board of appeals fails to act within the time period under this paragraph, the appeal shall be deemed granted.”**

35 P.S. § 7210.501(c)(1), (5). The appeal fee is capped at the actual costs of public notice, the court reporter's appearance fee and necessary administrative fees — § 7210.501(c)(4). Grounds for appeal are that the Act was incorrectly interpreted, that it does not fully apply, or that an equivalent form of construction is to be used (§ 7210.501(c)(2)).

In an opt-out municipality there is no board to appeal to

This is the least-known fact in Pennsylvania owner-building, and it is the other half of the opt-out bargain. Follow the three texts:

(1) 34 Pa. Code § 403.121(a) requires a board of appeals of a municipality that *has adopted* a UCC ordinance, or of municipalities party to a joint agreement. An opt-out municipality is neither, so no board is required and generally none exists. **(2)** § 403.63(i) grants a residential permit applicant the right to appeal “in a municipality which has adopted an ordinance for the administration and enforcement of the act” — an express qualifier that excludes you. **(3)** The Department's Industrial Board hears appeals from *Department* decisions; in an opt-out municipality your residential decision-maker is a private company, not the Department.

So: you choose your inspector, and you give up the statutory right to appeal him. What remains is a written, signed complaint to L&I under 34 Pa. Code § 403.104(a), which can lead to decertification proceedings against the official — but that is discipline of the inspector, not review of the decision about your house. It will not get your framing passed.

The practical remedy is contractual, and you must arrange it in advance.

Before you sign with an agency, ask what happens when you disagree with an inspector: is there a supervising official who will re-review, is there a second opinion available within the firm, and how is it requested. Get the answer in the engagement letter. This costs nothing to negotiate before you hire and is unobtainable afterwards.

THE ARGUMENT THAT WORKS EVERYWHERE

One route survives in both worlds, and it is underused. A building code official **“shall approve an alternative material, design or method of construction** if the proposed design is satisfactory and complies with the intent of the Uniform Construction Code and the offered material, method or work is equivalent to Uniform Construction Code requirements for its intended purpose.” The same subsection requires the official to accept compliance with the International Performance Code of 2021 as an alternative to compliance with the UCC. That is

written into § 403.103 — the opt-out section itself — so it binds the private agency you hired just as it binds a municipal official. “Shall approve,” not “may.” If you are proposing something unusual, make the equivalency argument in writing and keep the reply.

INSPECTION LOG

Fill in the five statutory inspections first, then add whatever additional items your official or agency told you it will run.

Required inspections — 35 P.S. § 7210.501(e)(1)

	Item	Date	Inspector / notes
☐	1. Foundation — before covering Requested _____ Inspected _____ Result _____		
☐	2. Plumbing, mechanical and electrical — rough-in Requested _____ Inspected _____ Result _____		
☐	3. Frame and masonry Requested _____ Inspected _____ Result _____		
☐	4. Wallboard Requested _____ Inspected _____ Result _____		
☐	5. Final — cannot pass until 1-4 have passed Requested _____ Inspected _____ Result _____		

Additional inspections this jurisdiction runs — § 403.64(e)

	Item	Date	Notes
☐	Inspection _____ Requested _____ Result _____		

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	Item	Date	Notes
☐	Inspection _____ Requested _____ Result _____		
☐	Inspection _____ Requested _____ Result _____		
☐	Inspection _____ Requested _____ Result _____		
☐	Inspection _____ Requested _____ Result _____		

Closing out

	Item	Date	Notes
☐	Final inspection report received Date _____ From _____		
☐	Report sent to lender (if you designated one) Date _____		
☐	Certificate of occupancy issued — check it names the code edition Date _____ Edition shown _____		
☐	Certificate filed with the municipality by the agency (opt-out only) Confirmed _____		

Sources — every Pennsylvania claim in this document (verified September 2026)

What this document states	Authority
The five required residential inspections, and the final-inspection rule	35 P.S. § 7210.501(e)(1)
Required inspections and reports in an enforcing municipality	34 Pa. Code § 403.64(d), (f)

Sources — every Pennsylvania claim in this document (verified September 2026)

What this document states	Authority
Official may conduct additional inspections	34 Pa. Code § 403.64(e)
Permit holder must notify when ready; no response deadline set	34 Pa. Code § 403.64(b)
Fees may be established with no state maximum; schedule is public	34 Pa. Code § 401.2a(a), (b)
Certificate of occupancy required; 5 or 10 business days; contents	34 Pa. Code § 403.65(a), (b)
Temporary and partial certificates	34 Pa. Code § 403.65(c), (f)
Agency files the certificate with the municipality; report to owner, builder and lender	34 Pa. Code §§ 403.64(g), 403.65(e), 403.103(e), (f)
Board of appeals: 30-day hearing, 5 or 10 business days to decide, deemed granted	35 P.S. § 7210.501(c)(5)
Appeal fee cap and grounds for appeal	35 P.S. § 7210.501(c)(2), (4)
Board of appeals required only of enforcing municipalities	34 Pa. Code §§ 403.121(a), 403.63(i)
Complaints to the Department about officials and agencies	34 Pa. Code § 403.104(a); 35 P.S. § 7210.105(a)
Alternative materials, designs and methods must be approved if equivalent	34 Pa. Code § 403.103(c)

Every source cited here is free to read, but Pennsylvania keeps statutes and regulations on **two different websites**. A citation reading **Pa. Code** is a regulation — **pacodeandbulletin.gov**, by title and chapter. A citation reading **P.S.** is a statute, and it is **not on that site at all**; the Pa. Code home page says so outright. Statutes are at **legis.state.pa.us** → Unconsolidated Statutes, by year and act number — the Construction Code Act is Act 45 of 1999. **One warning:** every Pa. Code chapter prints the Pennsylvania Bulletin issue it is current through, and an amendment published later is already law. Read that line first. All text here was read at those sources, September 2026.